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ORDINANCE NO. _____

AN ORDINANCE TO AMEND ORDINANCE 362 REGARDING THE MOVEMENT OF THROUGH TRUCK TRAFFIC WITHIN THE CITY OF RECTOR, ARKANSAS, AND FOR OTHER PURPOSES, AND DECLARING AN EMERGENCY,

WHEREAS, the unregulated movement of trucks is damaging the streets and highways of Rector, Arkansas, particularly those streets and highways which were not designed or constructed to carry such traffic, and

WHEREAS, the City Council of Rector, Arkansas, considers it in the best interests of the citizens of Rector, Arkansas, to restrict the movement of trucks to those streets and highways which have been constructed to withstand such usage, and

WHEREAS, the enforcement provisions need to be revised.

NOW, THEREFORE, the City Council of Rector, Arkansas, states and Amends Section 3 of Ordinance 362:

Section 1. Any person, firm or corporation, or its agents, officers or employees who shall violate the provisions of Ordinance 362, upon conviction before a court of competent jurisdiction, shall be fined in any sum not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00).

Section 2. Severability. In the event that any covenant, phrase, clause, paragraph, section, condition or provision herein contained is held to be invalid by any Court of competent jurisdiction, the invalidity of such covenant, phrase, clause, paragraph, section, condition or provision shall in way affect any other covenant, phrase, clause, paragraph, section, condition or provision herein contained.

Section 3. This Ordinance being necessary to protect the pavement upon said streets, and for the immediate preservation of the public health, peace and safety of the said City, an emergency is hereby declared to exist an this Ordinance shall be in full force and effect from and after its passage, approval and publications.

WITNESS my hand and seal this 12 day of Sept., 2016.

Teresa L. Roofe

Teresa Roofe, Mayor

ATTEST:

Shelia Dale

Shelia Dale, Rec/Treas.